

Tribal Law Number: 10-004

Enactment Number: 00-00

Title: Legislative Reform Act of 1993



Tribal Law 10-004

This is to establish the procedures by which the Chickasaw Tribal Legislature shall operate, and for other purposes.

IN THE CHICKASAW TRIBAL LEGISLATURE

June 18, 1993

- SEC.1.** This is to establish the procedures by which the Chickasaw Tribal Legislature shall operate, and for other purposes. Be it enacted by the Chickasaw Tribal Legislature here assembled that this act be cited as the "Legislative Reform Act of 1993."
- SEC.2.** The Chickasaw Tribal Legislature finds that:
- (A) a need exists for the Tribal Legislature to adopt uniform procedures for committees,
 - (B) a need exists for the Tribal Legislature to adopt uniform procedures for assembly, and
 - (C) a need exists for the Tribal Legislature to adopt "special rules of order."
- SEC.3.** The basis of authority for this Act is Article VI, Section 1, of the Constitution, wherein the Tribal Legislature is granted the Legislative authority of the Chickasaw Nation, and in Article VII, Sections 4 and 12, wherein the Legislature is granted the power and authority to enact rules and regulations pertaining to the Chickasaw Nation and to adopt rules of procedure for operation of the Legislature. The Legislature, with the adoption of this act, hereby:
- (A) repeals all previous resolutions, laws and enactments which pertain to rules of procedure for committees and

- for assemblies of the Legislature,
- (B) defines procedures for committees and for assemblies of the Legislature, and
 - (C) adopts procedures for committees and for assemblies of the Legislature, herein called "special rules of order."

SEC.4. For the purpose of this Act:

- (A) "The Chickasaw Nation" means the government of and all Chickasaw Indians by blood whose names appear on the final rolls of the Chickasaw Nation approved pursuant to Section 2 of the Act of April 26, 1906, (34 Stat. 137) and their lineal descendants, as pursuant to Article II, Section 1, of the Constitution of the Chickasaw Nation.
- (B) "Constitution" means the Constitution of the Chickasaw Nation as ratified by the voters of the Chickasaw Nation August 27, 1983.
- (C) "Legislature" means that body of not more than thirteen (13) members, as created and empowered by Articles V, VI, VII, VIII and IX of the Constitution, elected from the following districts according to an apportionment plan prescribed by the Tribal Legislature: Panola, Pickens, Tishomingo and Pontotoc, the boundaries of which are described in the Constitution.
- (D) "Chairperson" means that elected officer of the Legislature as defined in Article VII, Sections 1 and 2, of the Constitution, in whom is vested the authority and responsibility to perform items of official business that devolve from the Constitutionally mandated "privileges, duties and powers" of the Legislative Department, or to delegate or assign authority to perform items of business not expressly reserved to the Chairperson.
- (E) "Secretary" means that officer of the Legislature as defined in Article VII, Sections 1 and 3, of the Constitution, and the presiding officer of the Legislature in the absence of the Chairperson.
- (F) "Committee(s)" means any body devised by the Chairperson, generally composed of members of the Legislature, who shall serve unless or until removed or replaced by the Chairperson, and to which are delegated or committed a particular duty or duties, in the

expectation of any act performed by the committee's being confirmed or approved by the Legislature.

- (G) "Chairman" means that officer of a committee or Sub-committee who is appointed by the Chairperson to head a Committee or Sub-committee.
- (H) "Committee meeting" means any meeting of the Committee of the Whole, or a Standing committee, Sub-committee, Special or Select committee, Joint committee or Ad hoc committee.
- (I) "Formal assembly" means any Regular, Executive, or Special Session of a quorum of the Tribal Legislature:
 - (1) "Regular Session" means the Legislature meeting in accordance with Article VIII, Sections 1, 2 and 4, of the Constitution.
 - (2) "Special Session" means the Legislature meeting in accordance with Article VIII, Sections 2, 3 and 4, of the Constitution.
 - (3) "Executive Session" means a closed meeting of the Legislature, which may include technical and/or administrative support and/or witnesses, so designated and so approved by the Chairperson.
- (J) "Witness" means an individual person, organization, or representative of an organization, requested or ordered by the Chairperson or Chairman to appear before a committee, or the Legislature as a Whole, and from whom information is required.
- (K) "Sergeant-at-Arms" means that person(s), appointed by and directed by the Tribal Legislature, in accordance with Article VII, Section 1, of the Constitution, to attend all formal assemblies of the Legislature for the primary purpose of providing a shield of protection to the Legislature and of maintaining order in the hall.
- (L) "Recording Secretary" means that employee designated the Recording Secretary in accordance with Article VII, Section 1, of the Constitution.
- (M) "Governor" means the chief magistrate of the Chickasaw Nation, as defined in Article X, Section 1, of the Constitution.
- (N) "Timekeeper" means that member of the Legislature, usually the Secretary, who shall time the debate of the

members, the comments from citizens, and any other speaking that may require time constraints.

- (O) "Vacancy" means that the office of a member of the Legislature has been determined by the Legislature to be unoccupied.

SEC.5.(A) In the event a member of the Legislature wishes to resign from his position as a member, he shall present a signed and dated letter of resignation, specifying the date the resignation shall be in effect, to the Chairperson or the Secretary of the Legislature.

- (B) In the event a seat on the Legislature is determined to be vacant, the members of the Legislature shall, by resolution, request that the Governor call for a special election to be held within sixty (60) days of the vacancy, in accordance with Article XV, Section 2, and Article VII, Section 6, of the Constitution, unless the members of the Legislature unanimously agree to delay until the next regularly scheduled election for that position, in accordance with Article XV, Section 2, and Article VII, Section 6, of the Constitution.

- (C) In the event of the absence of a member of the Legislature from any Regular or Special Session of the Legislature, for any reason, the Chairperson of the Legislature, or the Chairperson Pro Tempore, shall decide whether said member shall be paid for the session.

- (D) The Chairperson of the Legislature and/or the Secretary of the Legislature shall be subject to removal from that office by a two-thirds majority Loss of Confidence vote of the Legislature. A member of the Legislature shall make a motion, and another shall second the motion, that the officer be removed from said office because of Loss of Confidence. The Legislature shall then vote, by roll call, whether to approve the motion and, upon a two-thirds majority vote, the removal shall be in effect.

- (E) The next order of business shall be nominations from the floor and the election, by secret ballot, of a member of the Legislature who shall serve the remainder of the term of the office from which the subject of the Loss of Confidence vote shall have been removed.

- (F) In the event the Chairperson of the Legislature or the Secretary of the Legislature wishes to resign from his position as an officer, he shall present a signed and

dated letter of resignation, specifying the date the resignation shall be in effect, to the other officer of the Legislature. The resignation shall be effective immediately or at the future, specified date, and not subject to withdrawal.

- (G) The next order of business shall be nominations from the floor and the election, by secret ballot, of a member of the Legislature who shall serve the remainder of the term of the office from which the officer of the Legislature has resigned.
- (H) In the absence of the Chairperson, the Secretary shall remain in the office of Secretary and shall preside as Chairperson Pro Tempore only to conduct the business of the Legislature.
- (I) In the event of a vacancy's occurring in the office of Chairperson, the Secretary shall remain in the office of Secretary and shall preside as Chairperson Pro Tempore only to conduct the business of the Legislature until a majority of the members elect one of their number to serve the unexpired term of the Chairperson.
- (J) In the absence of the Secretary, or if the Secretary is presiding as Chairperson Pro Tempore, a Secretary Pro Tempore shall be elected by the Legislature.
- (K) In the event of a vacancy's occurring in the office of Secretary, the Legislature shall elect one of their number to serve the unexpired term of the Secretary.

SEC.6.(A) 1.The duties of the Chairperson shall include, but shall not be limited to, signing all official acts of the Legislature, setting the agendas of the Regular, Special, and Executive Sessions of the Legislature and presiding over the sessions of the Legislature, presiding over any Committee of the Whole, appointing standing committees, sub-committees, special/select committees, joint committees, ad hoc committees, appointing the Chairman of any committee or sub-committee, attending meetings of standing committees, working with the Executive and Judicial Departments, and directing the support staff of the Legislature.

2.The Chairperson, as well as any other member of the Legislature, may sit on any board if appointed by the Governor and confirmed by the Legislature.

3.During the first year of his first term, a member of the Legislature may not be elected to the office of

Chairperson of the Legislature at the first Regular Session of the Legislature. However, in the event the office of Chairperson becomes vacant, any member may be elected to the office of Chairperson.

4. The number of times a member of the Legislature may serve as Chairperson shall not be limited.

- (B) 1. The duties of the Secretary shall include, but shall not be limited to, serving as Chairperson Pro Tempore in the absence of the Chairperson, signing all official acts of the Legislature, acting as Timekeeper, submitting all acts of the Legislature to the Executive Department the day of the Regular or Special Session, unless the session shall be at night (in which case the Secretary shall submit all acts of the Legislature to the Executive Department the next working day), notifying the Legislature in the event of a veto by the Governor, and reviewing and approving the transcribed minutes of all formal assemblies.

2. The number of times a member of the Legislature may serve as Secretary shall not be limited.

3. A member of the Legislature may serve in the office of Secretary his first year as a member.

- (C) 1. The Sergeant-at-Arms shall have the responsibility and the authority to control boisterous and disorderly persons, and to eject or remove any person posing a threat of danger.

2. The Sergeant-at-Arms shall be so uniformed and so placed that his presence and his function shall be readily discernable by the Legislature and by the gallery.

- (D) The Recording Secretary shall record the minutes of the meetings of the Legislature and shall perform such other duties as may be delegated by the Chairperson.

SEC. 7. (A) 1. "Standing committee" is a committee appointed by the Chairperson, comprised only of members of the Legislature, which considers business falling within the category of matters over which it has been given jurisdiction.

2. At the discretion of the Chairperson, proposed legislation shall be assigned to a standing committee for further review. It shall be kept in said committee no later than the third Regular Session of

the Legislature following its assignment to said committee, when it shall be presented on the agenda.

3.No legislation assigned to a standing committee shall be allowed to die in committee.

4.Each standing committee, through its Chairman, shall report its recommendation on proposed legislation to the Legislature.

5.Legislation proposed by an individual member of the Legislature may be presented to the Legislature, in session, for further consideration or action.

6.Each standing committee shall be composed of not more than six members of the Legislature, each of whom shall serve on no more than three standing committees. In addition, the Chairperson shall be a non-voting member, except to break a tie.

7.It shall be the responsibility of the Chairman of a committee to conduct the meeting and to provide for the recording and transcription of the minutes.

8.The following are standing committees of the Tribal Legislature, the provinces of some of which may, from time to time, best be addressed within the structure of a joint committee, special/select committee, ad hoc committee, or the Committee of the Whole, as determined by the Chairperson:

- (a) Legislative Committee: Sub-committees include, but are not limited to, the calendar, rules, elections.
- (b) Finance Committee: Sub-committees include, but are not limited to, budgets, audits, finances and salaries.
- (c) Human Resources Committee: Sub-committees include, but are not limited to, personnel, culture, tribal enrollment/citizenship, resumes on all gubernatorial appointees, grant applications, inspection/review of clinics, and programs' operations.
- (d) Land Development Committee: Sub-committees include, but are not limited to, all business ventures, all real property acquisition, leasing, disposition, and management, review of the Chickasaw Housing Authority, and review of Chickasaw Nation Enterprises.

- (B) 1. "Sub-committee" is a committee within the structure of a standing committee which shall report to the standing committee.
2. Each sub-committee shall be composed of at least three members of the standing committee. If the sub-committee is appointed to take action that requires the assistance of other members and/or persons other than members of the Legislature, the Chairman of the committee shall designate same.
3. No member of the Legislature shall serve on more than three sub-committees within a single standing committee.
- (C) "Special" or "select committee" is a committee comprised only of members of the Legislature, to attempt to represent all points of view in the Legislature, appointed by the Chairperson, which investigates and reports on specific matters, and is dissolved by the Chairperson when that function is deemed to have been served.
- (D) "Joint committee" is a special or select committee, appointed by the Chairperson as needed, which is comprised of members of two or more standing committees and is dissolved by the Chairperson when that function is deemed to have been served.
- (E) "Ad hoc committee" is a committee appointed by the Chairperson as needed, comprised of members and possibly non-members of the Legislature who investigate and report on specific matters, and is dissolved by the Chairperson when that function is deemed to have been served.
- (F) "Committee of the Whole" means the Legislature meeting in informal session.
- (G) 1. The Chairman shall call a committee meeting as he deems the necessity exists.
2. A committee meeting shall be an exclusive, closed meeting of the members of that committee.
3. Upon request, by the Chairman or other members, the meeting can be opened to include citizens, technical support, administrative support, and/or, from time to time, Executive Department representatives, special guests and witnesses so designated and so approved by the Chairman, and may operate under informal but consistent rules agreed upon by the members of the

committee.

SEC.8.(A) At the Committee of the Whole meeting preceding the Regular Session, any member can recommend to the Legislature as a Whole that the Legislature consider any proposed legislation as "emergency legislation," in which case the Committee of the Whole shall vote whether to call the piece of legislation out of committee and place it on the agenda for the Regular Session.

(B) All proposed legislation, in order to be placed on the tentative agenda, shall be received in the office of the Legislature no later than 5:00 p.m. the first Friday of the month.

SEC.9.(A) At the time that the members of the Legislature call for, or are notified of, a Special Session, as provided in Article VIII, Section 3, a tentative agenda shall be provided. The agenda shall be provided at the beginning of the Special Session.

(B) Any member of the Legislature may request that a piece of legislation be placed on the agenda. The order of business shall be suspended for a Special Session so that only the legislation specified on the agenda shall be voted on.

SEC.10. This Legislative Reform Act designates three separate and distinct categories of legislation adopted by the legislature, and provides for the numbering of each:

(A) General Resolutions shall be all resolutions which do not have the effect and force of law, but which are used to express the opinion or will of the majority of the Legislature. Examples of General Resolutions are those used to commend or to condone certain persons or activities respectively, those used to authorize the application process for programs or services funding, those used to approve leases, contracts or other business which does not require enacting into law, and those which approve of gubernatorial appointments. Such resolutions shall be in effect upon concurrence by the Governor or as is otherwise provided in the Constitution.

(B) Permanent Resolutions shall be all resolutions which have the effect and force of law. An example of a Permanent Resolution is one used to repeal or amend a

Tribal Law. Such resolutions shall have the force and effect of law upon concurrence by the Governor or as is otherwise provided in the Constitution.

(C) 1. Tribal Laws shall be any other legislation formerly designated Enactments or Tribal Laws. Tribal Laws shall be in effect upon concurrence by the Governor or as is otherwise provided in the Constitution.

2. In compliance with Article XI, Section 3, of the Constitution, if legislation adopted by the Legislature is not returned to the office of the Legislature by 5:00 p.m. on the Friday following the Friday Regular Session, or by 5:00 p.m. the fifth working day following any other session of the Legislature, whether concurred with, left unsigned, or vetoed by the Governor, it shall be in effect.

3. Each category of legislation shall be numbered in series to correspond with the Legislature in which each is introduced as well as the number of General Resolution, Permanent Resolution, or Tribal Law. For example, the first General Resolution adopted by the Ninth Legislature shall be designated: GR9-01. The first Permanent Resolution adopted by the Ninth Legislature shall be designated: PR9-01. The first Tribal Law adopted by the Ninth Legislature shall be designated: TL9-001. In all instances, the numbers assigned to each category shall be in numerical order in the order that they are introduced, whether or not they are adopted and/or receive the Governor's concurrence. This numbering system shall be retroactive upon adoption of this act.

SEC. 11. (A) The procedures outlined in this act shall be the authority for all business conducted by the Legislature and its committees, except as is elsewhere herein addressed.

(B) In deciding matters not addressed specifically by this act, Robert's Rules of Order shall be consulted as the definitive reference, as provided in Article VIII, Section 6, and Article VII, Section 12, of the Constitution of the Chickasaw Nation.

(1) The Chairperson shall call the meeting to order.

(2) The Recording Secretary shall call roll.

(3) A member of the Legislature designated by the Chairperson may give an invocation.

- (4) The minutes of the last session of the Legislature may be read by the Secretary of the Legislature.
- (5) The Chairperson shall address Unfinished Business:
 - (a) approval of the minutes of the last formal session of the Legislature, and
 - (b) any tabled legislation.
- (6) The Chairperson shall address Reports of Committees:
 - (a) The Chairmen of the Legislative Committee, the Finance Committee, the Human Resources Committee the Land Development Committee, and any other standing committee and, at the discretion of the Chairperson, the Chairmen of any special committee, joint committee or ad hoc committee, or sub-committee, shall present the reports of their respective committees, as an official statement, addressed to the Chairperson, of action taken, information obtained, or action recommended regarding all proposed legislation that appears on the agenda, or regarding any "emergency legislation."
 - (b) If, for any reason, the Chairman of a committee cannot or chooses not to give the report, the Chairman of said committee shall designate another member of said committee to give the report.
 - (c) The Chairperson shall not enter into debate of an issue until he has relinquished the Chair to the Secretary. However, he may answer a specific and/or clarification question.
 - (d)
 - (1) No member of the Legislature may debate for more than 15 minutes on any issue, said 15 minutes being kept by the Timekeeper, and neither the Chairperson nor any other member may close debate in any way, by any motion, so long as any member who has not exhausted his time to debate desires the floor. The right of any member to debate shall not be abrogated by any person or by any motion.
 - (2) The speaking required in giving a Committee Report, in responding to a direct question, or in asking a direct question in order to clarify a point shall not be considered to be time allotted for debate.

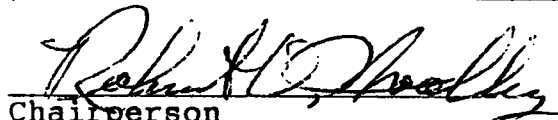
- (e) If greater freedom of debate is desired, the Chairperson shall declare the Legislature in the Committee of the Whole.
 - (f) Only members of the Legislature present at an assembly before which a question has been put may vote on the question. No provision shall allow voting on a question by phone, mail or proxy.
 - (g) It shall be a breach of ethics for a member of the Legislature to change, or to cause to be changed, any previously recorded vote.
- (7) The Chairperson shall address the Governor's Report/Executive Department Report:
- (a) The members of the Legislature shall have received a copy of the Governor's/Executive Department's written report.
 - (b) Should the Governor desire to address the Legislature, he shall be granted time to do so.
- (8) The Chairperson shall address New Business:
- (a) "Comments from citizens," as provided by Article VIII, Section 4, of the Constitution, at the discretion of the Chairperson, may be heard under the agenda item designated "New Business."
 - (1) Comments from individual citizens shall be limited to 5 minutes each.
 - (2) Citizens who have requested through a member of the Legislature to be placed on the agenda under New Business shall be allowed not more than 15 minutes to speak. Under the provisions of this act, for the timely processing of documents for the timely preparation of the members, the request to be placed on the agenda shall be submitted to the office of the Legislature office not later than 5:00 p.m. on the Monday preceding the session.
 - (3) No citizen may accumulate time, or give or receive time from any other citizen for the purpose of addressing the Legislature.
 - (4) All comments from citizens shall be addressed to and/or through the Chairperson.

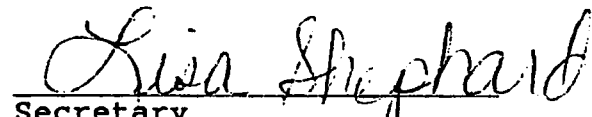
(9) The Chairperson shall address Adjournment.

SEC.12.(A) Should a question arise regarding the authority and/or procedures by which the Chickasaw Tribal Legislature shall operate, and should said question not be addressed by this act, and should such be deemed necessary, the Chairperson shall appoint an ad hoc committee to address the question and to formulate a remedy addressing same, to become part of this act upon approval by the Legislature.

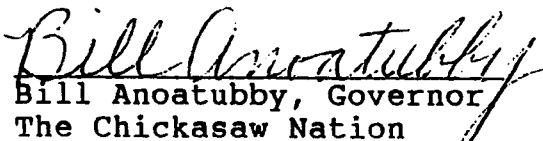
(B) Unless and until this act shall have been shown, by the Tribal Court, or any other court of competent jurisdiction, to be in conflict with the Constitution of the Chickasaw Nation, or unless there is a need to amend any questionable, incomplete, or abstruse part, because of the need for the Tribal Legislature to conform to a comprehensive and concise authority that provides uniform procedures for committees and assembly, this act shall stand. At such time, this act may be repealed by the adoption of a comprehensive and concise authority that provides uniform procedures for committees and formal assembly, approved by a simple majority of the Legislature.

Executed in Regular Session of the Chickasaw Tribal Legislature meeting at Ada, Oklahoma, on June 18, 1993, by a vote of 11 ayes, 1 nays, and 0 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concur:


Bill Anoatubby, Governor
The Chickasaw Nation

Date: JUN 25 1993